

Amendment No. 1 to SB0777

Briggs
Signature of Sponsor

AMEND Senate Bill No. 777*

House Bill No. 886

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 2-2-116, is amended by adding the following to the permanent registration record form:

(13) Political Party Affiliation (Select one):

{Name of majority party}

{Name of minority party}

Unaffiliated

Recognized minor party: ____

SECTION 2. Tennessee Code Annotated, Section 2-2-116, is amended by designating the existing language as subsection (a) and adding the following as a new subsection:

(b) The political party affiliation section of the permanent registration record must include options to register with a statewide political party or recognized minor party, or to be designated as unaffiliated. Statewide political parties must be listed in the same order as required by § 2-5-208. The form shall include a blank line to designate a recognized minor party affiliation. The form shall contain instructions that, if a voter fails or refuses to make a designation or designates a political party that is not a statewide political party or recognized minor party, the county election commission will enter on the permanent registration records that the voter is unaffiliated.

SECTION 3. Tennessee Code Annotated, Section 2-2-118, is amended by adding the following as a new subsection:

(e)

(1) At the time of initial registration, each qualified voter may designate on the registration application an affiliation with a statewide political party or recognized minor party or may choose to be designated as "Unaffiliated." The county election commission shall record the party affiliation or unaffiliated designation as part of the voter's permanent registration record. If a voter fails or refuses to make a designation or designates a political party that is not a statewide political party or recognized minor party, then the county election commission shall enter on the permanent registration records that the voter is unaffiliated.

(2) A person who was registered to vote prior to February 1, 2027, may designate the statewide political party or recognized minor party with which the person intends to affiliate during the registration period under § 2-2-109. Any change to such affiliation after the initial designation must be accomplished pursuant to Section 7.

SECTION 4. Tennessee Code Annotated, Section 2-1-104(a)(19), is amended by deleting the subdivision and substituting instead:

(19) "Primary election" means an election held for a political party for the purpose of allowing registered voters entitled to vote pursuant to § 2-7-115(b) to select a nominee or nominees to appear on the general election ballot;

SECTION 5. Tennessee Code Annotated, Section 2-1-104(a), is amended by adding the following as a new subdivision:

() "Unaffiliated voter" means a voter who is not registered as being affiliated with a statewide political party or recognized minor party;

SECTION 6. Tennessee Code Annotated, Section 2-7-115(b), is amended by deleting the subsection and substituting instead:

(b) A registered voter is entitled to vote in a primary election for offices for which the voter is qualified to vote at the polling place where the voter is registered if:

(1) It is the first primary election the voter has voted in on or after February 1, 2027, and at the time the voter seeks to vote, the voter declares allegiance to the political party in whose primary the voter seeks to vote. The county election commission shall record the voter's declaration or affirmation made at the time the voter seeks to vote as part of the voter's permanent registration record; or

(2) The voter has registered as being affiliated with a party pursuant to § 2-2-118.

SECTION 7. Tennessee Code Annotated, Title 2, Chapter 13, Part 1, is amended by adding the following as a new section:

(a) An individual registering to vote on or after February 1, 2027, may register as a member of a statewide political party or a recognized minor party.

(b) An individual who is registered to vote before February 1, 2027, or a voter designated as unaffiliated may register as a member of a statewide political party or a recognized minor party at the first primary election in which the individual participates on or after February 1, 2027, or during the registration period under § 2-2-109. The party with whom the individual registers must match the party for which the individual requests a primary ballot.

(c) An individual who has registered with a party under subsection (a) or (b) may change party affiliation during the registration period under § 2-2-109. Any such change received after the last day of the registration period shall not be processed until after the election.

SECTION 8. Tennessee Code Annotated, Section 2-13-107, is amended by adding the following as a new subsection:

(g) If a recognized minor party has failed to maintain recognition beyond the current election year, the county election commission shall update the permanent voter

registration record of any voter affiliated with that recognized minor party to

"Unaffiliated" upon notice from the coordinator of elections.

SECTION 9. If any provision of this act or its application to any person or circumstance is held invalid, then the invalidity does not affect other provisions or applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 10. This act takes effect February 1, 2027, the public welfare requiring it.